

reflects service on the plaintiff. The Motion was unopposed.

On June 24, 2026, plaintiff Teresa Banks ("Plaintiff") notified the Court that the case was removed to Federal Court. See Notice re Removal filed June 24, 2026. The Certification of Service of Removal to Federal Court dated June 22, 2026 filed as part of the Notice re Removal reflects service on Defendant.

Analysis

Given the above the Court finds as follows:

- 1) The case has been removed to Federal Court.

Disposition

The Court hereby finds and orders as follows:

- 1) The matter is ordered OFF CALENDAR and the hearing set for June 29, 2026 is hereby VACATED.

10. 9:00 AM CASE NUMBER: C26-00017
CASE NAME: ALBERTO DUARTE VS. MICHELLE KOSINSKI
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

Lillian Sedaghat and Natalie Lozovsky of the Sedaghat Law Group ("Counsel") filed a Motion to be Relieved as Counsel on February 18, 2026 (the "Motion to be Relieved as Counsel"). The matter was set for hearing on June 29, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Alberto Duarte ("Plaintiff").

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship. See Declaration filed February 18, 2026, ¶2. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to resubmit an updated order after hearing (MC-053), including the current next scheduled hearing in Paragraph 7 as well as confirming the client's last known address and telephone number at Paragraph 6.

11. 9:00 AM CASE NUMBER: C26-00187
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
***HEARING ON MOTION IN RE: SUBSTITUTED SERVICE BY EMAIL**
FILED BY:

TENTATIVE RULING:

On February 19, 2026, plaintiff Sebrion Mchenry-Stewart ("Plaintiff") filed a motion for leave to serve defendants Jesse Gillespie and Regional Protection Agency Services Inc. ("Defendants") by email (the "Motion for Leave to Serve by Email"). The Motion for Leave to Serve by Email was set for hearing on June 29, 2026.

Background

Plaintiff filed this action on January 20, 2026. The Petition seeks monetary damage and enforcement of a Decision of the Labor Commissioner of the State of California in Plaintiff's favor dated December 18, 2025.

Analysis

Plaintiff references Code of Civil Procedure section 415.50(c). That section provides "Service of a summons in this manner is deemed complete as provided in Section 6064 of the Government Code" and relates to service via publication when permitted. See Code Civ. Proc. § 415.50(c).

This is not a request for leave to serve via publication.

The Court does not find any basis to order service of process on either of the Defendants by email.

Lastly, it is not clear to the Court why this suit is being pursued if the Labor Commissioner may initiate the appropriate process to confirm a court judgment based on the Decision.

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to Serve by Email is DENIED.
2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA

TENTATIVE RULING:

Continued to August 10, 2026, 9:00 am, in Department 34, pursuant to the stipulation of the parties and the Court's Order signed June 17, 2026.